

25NNCV06984 25NNCV06984

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-09-01

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Case Number: 25NNCV06984 Hearing Date: September 1, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

ROSITA SY,

Plaintiff,

vs.

LOS ANGELES METROPOLITAN TRANSIT

AUTHORITY; DOES 1 TO 50,

Defendants.

Case

No.:

25NNCV06984

Hearing

Date:

September

1, 2026

Time:

8:30 a.m.

[Tentative]

Order RE:

MOTION TO COMPEL PLAINTIFF TO ANSWER
SPECIAL INTERROGATORIES

MOTION TO COMPEL PLAINTIFF TO ANSWER FORM
INTERROGATORIES

MOVING PARTY: Defendant Los Angeles County
Metropolitan Transportation Authority

RESPONDING PARTY: None.

The Court
considered the moving papers filed in connection with the instant motion.

BACKGROUND

On October 2, 2025,
Plaintiff Rosita Sy ("Plaintiff") brought this action against Defendant Los Angeles County Metropolitan Transportation Authority erroneously sued as Los Angeles Metropolitan Transit Authority ("Defendant"), alleging a cause of action for negligence. The cause of action arises out of injuries Plaintiff allegedly suffered from a fall while a passenger on Defendant's vehicle.

On June 4, 2026,
Defendant filed the instant motions to compel Plaintiff's responses to Defendant's Special Interrogatories ("SROGs") and Form Interrogatories ("Form Rogs.")

No oppositions were
filed.

LEGAL STANDARD

A responding party has 30 days after service of interrogatories to serve their responses on the propounding party. (Code Civ. Proc., § 2030.260, subd. (a).) However, if interrogatories are served by electronic service, a responding party has an additional two (2) court days to respond. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

If the responding party fails to timely respond to the interrogatories, “[t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2030.290, subd. (a).)

Furthermore, the party propounding the interrogatories may move for an order compelling response to the interrogatories. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) And “[u]nlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit, and the propounding party does not have to demonstrate either good cause or that it satisfied a ‘meet and confer’ requirement.” (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Failure to timely respond waives all objections, including privilege and work product, unless “[t]he party has subsequently served a response that is in substantial compliance” and “[t]he party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2030.290, subsd. (a)(1)-(2).)

DISCUSSION

Defendant moves to compel Plaintiff’s responses to the SROGs and Form Rogs.

Defendant served Plaintiff with the SROGs and Form Rogs. on March 24, 2026. (Wainfeld Decl., ¶ 1, Exhs. A.) Therefore, at the latest, responses were due on or before March 27, 2026, accounting for two additional days for electronic service. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) On May 5, 2026 and May 14, 2026, Defendant’s counsel emailed

Plaintiff's counsel requesting responses, but Defendant never received responses to those emails or the discovery requests. (Wainfeld Decl., ¶¶ 2-3, Exh B.) Notably, Plaintiff has not filed an opposition to the instant motions.

Given Plaintiff's failure to provide responses to the SROGs and Form Rogs., the Court grants Defendant's motions to compel Plaintiff's responses.

SANCTIONS

Defendant requests that the Court awards monetary sanctions in favor of Defendant against Plaintiff in the amount of \$350.00 for each motion.

When a request for monetary sanctions is concurrently filed with a motion to compel responses, "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc., § 2023.030, subd. (a).) Additionally, "If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanction unjust." (Ibid.)

Plaintiff did not file opposition, so the Court does not find substantial justification or the existence of circumstances that make the imposition of sanctions unjust.

Defendant's counsel cites his hourly rate at \$350.00 and contends that he spent one hour preparing each of the instant motions. (Wainfeld Decl., ¶ 4.) The Court finds Defendant's request and the time expended reasonable. The Court awards \$700.00 in monetary sanctions.

CONCLUSION

Based on the foregoing, the Court GRANTS Defendant Los Angeles County Metropolitan Transportation Authority's motions to compel Plaintiff Rosita Sy's responses to Defendant's Special Interrogatories and Form Interrogatories.

The Court awards sanctions in the amount of \$700.00 against Plaintiff and her counsel of record, jointly and severally, payable to counsel for Plaintiff within twenty (20) days of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 1, 2026

Sarah
J. Heidel

Judge
of the Superior Court